

TERMS AND GENERAL CONDITIONS OF SALE AND INSTALLATION BY AMBIENCE HOME DESIGN S.L.

This document is an English translation of the original Spanish Terms and Conditions. In case of discrepancy, the Spanish version shall prevail.

1. GENERAL CONDITIONS

1.1. AMBIENCE HOME DESIGN S.L. (hereinafter referred to as “Ambience”) accepts your order. The acceptance of your order creates an agreement between you and Ambience. By virtue of this agreement, the relations between the parties will be governed by full submission to the general conditions of sale of furniture and installation by Ambience. Consequently, any order and acceptance of delivery presume the knowledge and acceptance by you as buyer of the general conditions of sale and those conditions that are specific to the item(s) purchased.

1.2. It is the client's obligation to ensure that we are provided with accurate and complete floor plans if we are unable to enter the property. Any costs arising from a discrepancy between the plans and the final constructed measurements will be borne by the client.

1.3. Up to three (3) on-site visits required by Ambience or its subcontractors are included free of charge. Any additional on-site visits requested by the builder or the client during the construction phase shall be billed separately as per our hourly rate, unless otherwise specified in the design agreement signed by the client.

1.4. The descriptions and measurements of the items are for guidance purposes only and may be modified by the manufacturer in order to improve their technical or design characteristics. Ambience reserves the right to cancel or amend any item within an order without prior notice if the goods are deemed to be of unsatisfactory quality. Amendments to orders will only be accepted provided that the manufacturing process has not yet commenced.

1.5. Once Ambience has been given a key to the property, Ambience will no longer need any further authorisations by the property owner to enter and exit the property, as well as for the delivery and removal of goods. Ambience reserves the right to access the property until the commissioned works have been completed, or until the Client formally requests in writing that the keys be returned.

1.6. Ambience will not begin the installation of the project until the refurbishment and construction works have been fully completed. Likewise, the property is required to be free of furniture; otherwise, the Client will be charged a fee of €145 per hour plus VAT for each hour spent relocating the furniture, as this causes delays to the scheduled installation date. If the Client agrees for Ambience to be responsible for the relocation of the furniture, Ambience will prepare a quotation that includes both the cost of removing the furniture and the corresponding storage fee.

1.7. Ambience does not work simultaneously or in coordination with external contractors or suppliers (including, but not limited to, builders, painters, electricians or other trades) during the installation process. From the commencement of the furniture installation, the Client must ensure that Ambience is the sole authorised provider with access to the property, including any annexes and/or plots, if applicable. Ambience assumes responsibility for the property from the moment a provisional lock is installed, and Ambience holds exclusive access until the official handover of the project. Upon completion and handover, the original lock will be reinstalled. Ambience shall not be held responsible for any damage, loss, or theft of goods once installed, should third parties not associated with Ambience or its subcontractors gain access to the property.

1.8. If the Client requests that Ambience perform work in the presence of other contractors, this request must be made in writing (either through a signed document or a written email confirmation). In doing so, the Client expressly acknowledges that Ambience accepts no responsibility or liability for any damages, losses, or delays resulting from the actions or presence of such third parties. This includes, but is not limited to, any damage to the property, furniture, fixtures, or fittings during installation.

1.9. Should an inspection of the property be required prior to installation to document any pre-existing damage, Ambience will carry out such documentation (including written notes and photographic evidence) at a rate of €160 per hour plus VAT.

1.10. Any additional costs incurred due to the presence of other contractors—such as extra cleaning, additional protection materials, or time spent addressing site conditions—will be charged to the Client upon completion of the work. Ambience reserves the right to apply these charges without prior notice; however, the Client will be informed as soon as reasonably practicable if such additional costs arise.

AMBIENCE

HOME DESIGN

1.11. Likewise, in the event that Ambience is not the only provider with access to the home at the time of the furniture installation, Ambience reserves the right to postpone the installation and consequently change the delivery scheduled deadline until the owner / client guarantees exclusive access to the property. The client will assume the consequences caused by the delay of the installation, which may include moving our installation by at least 3 months, or longer if needed, depending on the project's size and suppliers' availability. The installation process is sequential, so any delays in one part will affect the entire schedule.

1.12. Upon completion of all works covered by the signed professional order, Ambience will return the keys to the client/owner. However, upon a written and reliable request from the owner/client, the keys may be returned prior to completion.

2. ORDERING PROCESS

2.1. Ambience will not proceed with placing orders until the Client has authorised, signed, and sent the required documentation by email, such as the signed Quotations (with signature, date, and quotation number on each page of the quotation), or has equally accepted them via the digital signature system called (SIGN REQUEST), and the corresponding 50% deposit has been received by bank transfer into the bank account detailed in the quotation received from Ambience.

2.2. Ambience reserves the right to make modifications of up to 20% in item dimensions, where technically or operationally required.

2.3. In the event that the Client agrees to Ambience to proceed with the order process without having the option to access the property to take final, actual measurements, any costs arising from differences in the sizes of the items already ordered based on the measurements from the plans shall be borne by the Client.

2.4. For all bespoke, personalised or custom-made items, Ambience may require the Client to review and approve the relevant technical drawings, specifications, material selections and/or finish details prior to production.

The Client's signature or written approval of such documentation shall constitute confirmation and acceptance of the dimensions, configuration, design details, materials and finishes stated or referenced therein and shall authorise Ambience to proceed with manufacture. Once the Client has provided such approval and production has commenced, no changes or cancellations may be made without the prior written agreement of Ambience.

Any changes requested after approval may result in additional design, administration, manufacturing and/or installation costs and may affect the estimated delivery or installation schedule.

Where natural materials are selected, the Client acknowledges and accepts the natural variations described in Sections 5 and 6 of these Terms and Conditions.

Ambience shall not be responsible for errors arising from dimensions, information, plans or specifications provided by the Client, architect, builder or other third party where Ambience has not been able to independently verify such information on site.

3. PRICES

3.1. Ambience reserves the right to modify the prices of items without prior notification until the client accepts the quote.

3.2. The client's acceptance of any quote by signing the sales contract cancels any prior quote(s).

4. DELIVERY AND INSTALLATION

4.1. Delivery times are approximately 12 to 16 weeks, which could be extended by 2 to 4 weeks if this falls during the period of August or December due to the closure of manufacturers and suppliers for holiday breaks, and once the contract, according to point 2 of these conditions, is signed and accepted. These deadlines may vary depending on the items, so Ambience cannot commit to setting exact delivery times. Delays caused by strikes, labour shortages, supplies or primary materials & transport, etc., are not the responsibility of Ambience. Penalties and responsibility for delayed delivery are not accepted under the above clause.

Furthermore, Ambience reserves the right to postpone delivery if access to the property is hindered or rendered difficult by situations such as building work, a faulty elevator, or any circumstance deemed hazardous by Ambience, including situations that compromise the safety of personnel making the delivery or pose a high risk of damage to the items, or any circumstance considered force majeure.

4.2. Any extra equipment needed for the installation, such as a crane, scaffolding, forklift, skip, etc., is not included in our quotes or delivery fees unless specified.

4.3. The client should obtain the local permits and special licences required for the installation.

AMBIENCE

HOME DESIGN

4.4. After the post-construction cleaning, usually carried out by the building company, and after the carpentry installation, a more thorough cleaning should be conducted before furniture installation. This cleaning can be performed by a company of the client's choice or, if preferred, we can provide an estimate for the client's approval. Ambience reserves the right to postpone the installation of the furniture if the cleaning and hygiene conditions are inadequate and could affect the proper execution of the installation work.

4.5. Once the schedule is organised, deliveries will commence within the time frame confirmed by our logistics department and 3rd parties.

4.6. Ambience Home Design S.L. shall apply an 8.5% White Glove Delivery, Installation, and Coordination Fee on the total net value of the furniture order and 4% of the total net amount for the curtains order.

This fee covers all operational services required to ensure a safe and successful installation, including but not limited to: warehouse handling and preparation, delivery logistics, coordination with subcontractors, on-site installation and assembly, provision of packaging materials and waste disposal, basic storage for a period of up to 10 months, insurance of the goods, quality control, management of claims or replacements where necessary, and basic post-installation cleaning of the furnished areas.

After the initial 10-month period, a flat-rate storage fee of €450 plus VAT per month shall apply for the continued storage of items associated with the project. This fee is standard for all clients and is not calculated based on property size or storage volume. It reflects an averaged cost designed to simplify administrative processes and ensure consistent pricing.

For projects located outside of Spain, Ambience shall apply an International Delivery, Installation and Coordination Fee ranging between 11% and 15% of the total net value of the furniture order, depending on the destination, logistics complexity, customs procedures and coordination requirements. The applicable percentage will be specified in the relevant project proposal or quotation.

4.7. Ambience will not proceed with any furniture installation at the property until all building works are completed, all building licences are correctly granted, the property deeds are signed by the owner, and the electricity and water supply are properly operational.

4.8. If the installation date arranged in accordance with these terms and conditions is postponed or delayed due to causes beyond Ambience's control (such as delays in building completion, etc.), Ambience reserves the right to modify the installation date originally agreed on according to the availability of its own installation calendar and the availability of suppliers.

4.9. All bespoke items must be measured on site before production. Measurements have to be accurate; therefore, it is essential that the roof and the floor with the pavement are finished. The final delivery of these items will depend on the supplier's availability and production times, which can take between 2 and 3 months after on-site measurements are taken. The total installation of the project will depend on these bespoke items. If measurements cannot be taken after 6 months, prices may change, and Ambience will have the right to update them.

4.10. Upon completion of the works, Ambience will conduct a handover of the project to the client or to the person deemed authorised by the client. A thorough walkthrough of the property will be conducted, with a comprehensive check. Upon its conclusion, the Project Completion Act will be signed. This document confirms that all work has been satisfactorily completed in accordance with the agreed terms, providing evidence that the project is complete and that all contractual obligations have been fulfilled.

5. PRODUCT VARIATIONS

5.1. All products of natural origin or with natural finishes may exhibit variations in colour, size, and shape.

5.2. Products, whether wholly or partially made from materials such as wood, metal, glass, wicker or any natural fibre, leather, marble or natural stone, possess inherent characteristics such as knots, small indentations, variations in colour, shape, texture or tone, which certify their origin and cannot be considered defects. Colour, shape, or size finishes may vary due to atmospheric conditions (humidity, temperature, light, etc.). Samples are always illustrative, as it is technically impossible to guarantee the permanence or consistency of the material over time or between different batches. The Buyer placing the order accepts these tolerances and potential variations, and dimensions may vary by up to 15% depending on the item.

5.3. In view of variations in manufacturing and availability of materials and handmade products, we cannot guarantee that all furniture supplied will be identical (including size, colour, grain and shading) with the details described or the samples seen, and any variation in this regard will not constitute a breach of your order.

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HOME DESIGN

6. TECHNICAL REMARKS

6.1. All products made wholly or partially from natural materials or with natural finishes may exhibit variations in colour, size, and shape. Products, totally or partially made of materials such as wood, cane, leather, marble, natural stones, or metals, have innate characteristics, such as knots, colour changes, shapes, textures, or tonalities, that certify their origin and cannot be considered defects but rather characteristics of the product.

6.2. Any sample presented should be taken as an example; therefore, colour/shape/size/finish may change or be affected by climatic factors (e.g., humidity, temperature, light). The samples are illustrative, as it is technically impossible to ensure the material's permanence or firmness across different batches due to its special characteristics. The customer accepts variations and changes that may occur due to the material's nature.

6.3. Considering variations in manufacturing, material availability, and handmade products, we cannot guarantee that all materials supplied will be identical (including size, colour, grain, and shade) to the details described or the samples seen, and any variation in this respect will not constitute a breach of your order.

6.4. Marbles or any other natural stone are slabs of rock and therefore may present small imperfections or differences that cannot be considered as a defect.

6.5. Metals normally have a spray varnished finish to protect the material, for this reason, scratches or colour changes are not considered defects, but characteristics of the product.

6.6. Leather is a natural product, so colour differences will occur in the leather as well as marks in the leather; therefore, they are not treated as a defect but as characteristics of the leather.

6.7. Wood, as a natural material, is sensitive to environmental conditions and requires maintenance by applying waxes and/or varnishes to protect and care for it. Special care should be given to outdoor furniture, and annual maintenance is recommended.

6.8. Items/materials of average quality may have minor defects that will not be accepted as damage by the factory, so Ambience will not be able to return or replace them.

7. 3D IMAGES OR VISUALIZATIONS

7.1. The 3D renderings are generated from calculations produced by algorithms and formulas that simulate; therefore, the 3D images that could be included in Ambience's proposals are only referential and illustrative, and they may not represent reality in its entirety but rather convey the main ideas of the proposal. These 3D images are purely illustrative and do not constitute an exact representation of reality; they may vary in their characteristics, surfaces, textures, and colours.

8. CLAIMS

8.1. General for all projects

8.1.1. Only exchanges or returns of items that have faults, errors, or defects making them unusable for the intended purpose will be accepted. In such cases, the client must communicate this in writing within 14 days of receipt. Ambience reserves the right to apply appropriate corrective measures, such as replacing the item with another of the same or similar characteristics, offering a price reduction, or, in the final instance, refunding the money.

8.1.2. Items are non-returnable. However, outside of the aforementioned circumstances, if the customer decides to return any item from an order, they must notify us in writing within 14 calendar days of receipt of the items. Ambience will communicate in writing whether the return is accepted. If accepted, the return will incur a 50% depreciation from the applicable price at that time, provided the merchandise is in perfect condition. This depreciation is due to design, logistics, administration, transportation, and installation costs, all of which are fully borne by Ambience. Personalised, custom-made, or made-to-order items for the customer's home/project cannot be returned.

In such cases, the client must obtain formal written authorisation from Ambience, which will specify the item(s) to be returned and, if applicable, the acceptance of said return. The client must return the received products without undue delay, and in any case, no later than 14 calendar days from the date of the Project Completion Act, bearing the direct costs of the return to the warehouse of Ambience. In any case, the refund will be issued in the form of a voucher/credit that can be redeemed for any of our design/furniture services.

8.1.3. Discounted items or items bought on offer/sale are non-refundable or non-returnable.

Ambience Home Design S.L. CIF: B-92401983

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AMBIENCE

HOME DESIGN

8.1.4. Ambience does not accept responsibility for incorrect items being delivered where size, colour or material were not clearly specified.

8.2. Projects with installation outside Spain

8.2.1. Ambience recommends its clients to purchase full insurance for the goods until the destination after leaving our warehouse. The insurance included within the handling and installation fee does not replace or supersede the Client's obligation to secure international transport insurance when applicable.

8.2.2. Ambience is not liable for any damages, delays, or missing items that occur after goods have been loaded or during transport. However, the goods are insured during transport, and the Ambience team will check them upon arrival at the destination in case we need to file a claim if anything happens during transport.

8.2.3. Any claims to the transport company must be made within the legal time frame, 24 hrs after the items are delivered.

8.2.4. Ambience is not liable for any additional fees or taxes during the transport and delivery of goods to the destination.

9. SUBCONTRACTED WORKS AND SERVICES

9.1. Ambience acts as Project Manager and will take responsibility for the results of all the work carried out by the subcontracted companies hired by Ambience only. Ambience will not take responsibility for any other subcontractors.

9.2. If Ambience or its subcontractors are requested by the client for any installation and, for whatever reason, outside our responsibility, the installation cannot take place, there will be a surcharge of €25 plus VAT per person per hour for lost time and transport.

10. RIGHT OF PROPERTY

10.1. All items remain the property of Ambience until the project and/or quotation accepted by both parties has been paid in full.

10.2. If not otherwise agreed, Ambience reserves the right to use photographs of the property before and after, 3D images, floor plans, and designs for any marketing purposes, including publications & social media.

10.3. Ambience owns all designs for the project, including plans, 3D images, renders, samples, etc. The referred ownership includes copyrights, trademarks, patents or other intellectual property rights derived from the design. The client shall not use these designs for purposes other than those stated herein without the permission of Ambience.

11. PAYMENT TERMS

11.1. General for all projects

11.1.1. A 50% deposit is required upon acceptance of a quote, with the final 50% due upon arrival of the goods at our warehouse, or at the latest 3 weeks before the goods leave the warehouse for installation.

11.1.2. The final payment is due 8 months after the first signed order date. If the installation is delayed for reasons beyond Ambience's control, the Design Fee, which is refundable as per the Design Fee Agreement, will be applied to the last payment.

11.1.3. Failure or delay in payments, even for partial or total invoice amounts, will result in the suspension of in-progress supplies or the cancellation of the contract and the claim of any damages sustained.

11.1.4. All payment surcharges due to late payments or transfer costs are to be borne by the client.

11.1.5. Any delay in the final payment will result in a 2.5% per year penalty charge on the final bill.

11.1.6. Please note that if the entire order is not paid within 12 months after Ambience has sent its 3 reminder letters and the furniture is kept in Ambience's warehouse, the contract will be automatically cancelled by the client, and the deposit will not be refunded to the client. All furniture will remain the property of Ambience.

11.1.7. To proceed with the invoices, the client must send all relevant documentation. If the invoice is to be issued in a client's name, a copy of his/her DNI/NIE or passport (if the property is not in Spain) is required, along with his/her complete residential address. In case the invoice is to be issued to a company, a copy of the CIF/ COMPANY REGISTRATION NUMBER, the fiscal address and a copy of the PASSPORT /NIE/DNI of the Administrator of the company.

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11.2. International projects

11.2.1. Any flights, expenses, additional transport costs or any elements, machinery or tools needed for the installation are not included in the original quote and will be charged separately.

11.2.2. Custom duties, taxes, and any other costs levied by the respective countries shall be borne by the client.

11.2.3. All costs arising from delays in customs during transportation (such as cancellation fees, transport surcharges, hotels, flights, etc.) shall be borne by the Client, as well as any costs incurred during the customs process.

11.2.4. Any amounts stated in this Agreement with Value Added Tax (VAT) shall apply solely to projects located within Spain. In the case of projects located outside Spain, such amounts shall be deemed exclusive of VAT.

11.2.5. Any costs incurred as a result of acquiring special permits from local authorities for the installation works (including permits for the truck's circulation in the installation area and its parking for unloading, etc.) will be borne by the client. The acquisition of the aforementioned permits is the client's responsibility and should all be properly granted at the time of installation.

12. CANCELLATION FEE

12.1. Once Ambience has received the signed orders and the deposit, the orders will proceed. If the client decides he doesn't want to proceed after that, there will be a 50% cancellation fee of the total project, and all rights to all items included in all quotations shall revert to Ambience.

13. VARIOUS PROVISIONS

13.1. Partial invalidity

In the event that any provision of these Terms and Conditions is declared invalid, the remaining provisions shall remain in full force and effect and shall be interpreted considering the will of the parties and the purpose of these Terms and Conditions.

13.2. Waiver

The non-exercise by Ambience of any right derived from these General Conditions will not be interpreted as a renunciation of said right, unless expressly renounced in writing.

13.3. Communications

All communications in relation to this Contract must be made in writing, will be addressed to the addresses and numbers established for such purposes and/or will be delivered personally or in any other way that certifies receipt by the notified party. Any change in the addresses designated by the parties to this Contract shall be communicated to the other party in accordance with the provisions of this Clause.

14. MODIFICATIONS

14.1. Ambience reserves the right to unilaterally modify the Terms and Conditions at any time and without prior notice whenever there are legitimate interests to do so, the service requires it, or it is necessary to comply with current regulations. These modifications will be published on the company's website www.ambiencehomedesign.com for your information and effect, so periodic review is recommended.

15. DISCREPANCY

15.1. In the event of any discrepancy or legal action arising from the terms and conditions of this contract, the parties expressly submit, waiving any other jurisdiction to which they may be entitled, to the Courts and Tribunals of MARBELLA (Spain) and agree that all matters relating to this contract shall be governed by Spanish Law.

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I HAVE READ, UNDERSTOOD AND ACCEPT THESE PRESENT TERMS AND CONDITIONS OF SALE FOR FURNITURE AND INSTALLATION.

SIGNATURE: _____

NAME: _____ DATE: _____

CONTACT EMAIL FOR NOTIFICATIONS: _____

DNI/NIE OR PASSPORT NUMBER AND PLACE OF ORIGIN: _____

ADDRESS OF PERMANENT RESIDENCE: _____

BOTH THE SIGNATURE IN PERSON AND THE SIGNED AND SCANNED DOCUMENT, AS WELL AS A SIGNATURE OBTAINED VIA AN ELECTRONIC OR DIGITAL SIGNATURE SYSTEM, SHALL BE VALID AND EFFECTIVE AS A METHOD OF APPROVAL OF THIS DOCUMENT, WHICH IS ACCEPTED AND RECOGNISED BY BOTH PARTIES.